SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Criminal Appeal No. 152 of 2013

CNR: SCIN010001522013

Date: 29 October, 2020

Citation: (2021) 4 SCC 1

CORAM: Hon'ble R.F. Nariman, Navin Sinha, Indira Banerjee, JJ.

Petitioner: Tofan Singh

- VERSUS -

Respondent: State of Tamil Nadu

DOMAIN: NARCOTICS LAW & LAW OF EVIDENCE **STATUS: Good Law (Binding 3-Judge Precedent)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Officers invested with powers under Section 53 of the NDPS Act are police officers within the meaning of Section 25 of the Evidence Act. A confessional statement made to them under Section 67 cannot be used as substantive evidence against the accused.

STATUTES APPLIED: Section 67 NDPS, Section 53 NDPS, Section 25 Evidence Act, Section 26 Evidence Act

DISPOSITION: CONVICTION BASED SOLELY ON SECTION 67 STATEMENTS QUASHED

EXECUTIVE RATIO SUMMARY:

Three-judge bench held that officers invested with powers under Section 53 of the NDPS Act are 'police officers' within Section 25 of the Evidence Act, rendering any confessional statement recorded under Section 67 inadmissible as substantive evidence.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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